

What if a Mechanics Lien is Filed on Your Property?

Determine if it is a valid lien. It may not be valid if the work was not completed or supplies were not included in the plans or contracts. An attorney can help you find out if the lien is valid.

Often lien claims are invalid because the contractor, subcontractor, laborer, or material supplier has failed to meet the required timelines for filing the claim. Review the checklist below to determine if the claimant followed the required timelines.

Lien Requirements Checklist

-  **Check to see if a Preliminary Notice was given to you within the specific time frames.** (Remember: direct contractors and laborers do not have to file preliminary notices.)

A subcontractor or material supplier has 20 days after beginning work or delivering materials to serve you a Preliminary Notice. If the notice is late, the claimant loses lien rights for work done or materials delivered more than 20 days before the notice. The claim against your property is only valid for work done or supplies delivered 20 days before notice was given and anytime thereafter.
-  **Be sure the Notice of Mechanics Lien accompanies the lien claim.**
The claim should include the amount owed, the service or products provided, the employer, the property owner, the address or description of where work was done or products delivered, the claimant's address, and a Proof of Service Affidavit completed and signed by the person serving the Notice and the claim.
-  **Check to see if the potential lien claimant filed the mechanics lien within the legal time frame.** If the potential lien claimant fails to record the mechanics lien within the appropriate time frame, the lien isn't valid.

The potential lien claimant must record the mechanics lien within 90 days of:
 - ▶ Completion of work;
 - ▶ When the property owner began using the improvement;* or
 - ▶ When the property owner accepted the improvement.

*This is sometimes hard to verify because the homeowner often occupies the residence during construction. Contact an attorney for assistance on this point.

 Check with your local superior court to see if the subcontractor or material supplier filed a timely lien foreclosure action.

A lien foreclosure action is a lawsuit to foreclose the mechanics lien. The lien claimant must file a lien foreclosure action within 90 days of the date that he or she recorded the mechanics lien. Often a lien claimant with a valid claim will fail to follow through, making the lien invalid.

Invalid Liens

A lien stays in the county records and on your property title until you take action to remove it. An invalid lien can make it difficult or impossible to sell, refinance, or obtain a line of credit on your property.

If the contractor, subcontractor, laborer, or material supplier fails to follow any of the specific time frames, you can petition the court to remove the lien.

Although anyone can record a mechanics lien, unlicensed contractors cannot foreclose on a mechanics lien if the work is valued at more than \$500.

Steps to removing an invalid lien:

Send the lien claimant a written request by certified, registered, or express mail. Keep a copy of your letter and postage receipt as proof of your request. Include:

- ▶ Deviations you've identified from the above checklist;
- ▶ A request for the claimant to remove the lien; and
- ▶ Remind the claimant that if the lien is not removed and you have to get an attorney to remove it, the court can award you the attorney fees deemed reasonable to release the lien. The mechanics lien law changed July 1, 2012, removing the former \$2,000 cap.

Send the request to the claimant's last known, verified address. Sometimes sending the letter is enough to persuade the lien claimant to release the lien.

Keep all your documents and paperwork. You may need to demonstrate to a court that the lien claimant is unable or unwilling to execute a release of the lien or cannot, with reasonable diligence, be found.

Court Petition to Release the Property Lien

If the lien claimant doesn't remove the invalid lien, and the time has expired to record the mechanics lien and take action to foreclose, you may petition the court for a decree to release the property from the lien. This is a complicated process that may require the services of an attorney.

For more information regarding mechanics liens, see: [Civil Code sections 8000—9566](#).

